

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                  |                                     |                               |                                                       |                                    |                                 |
|----------------------------------------------------------------------------------|-------------------------------------|-------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Ariana Thomas                                                   | Team:<br>Squad #16                  | CCRB Case #:<br>202306036     | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                                                  |                                     |                               | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 06/23/2023 6:30 PM, Wednesday,<br>06/28/2023 8:15 PM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>12/23/2024      | Precinct:<br>60                                       |                                    |                                 |
| Date/Time CV Reported<br>Mon, 07/03/2023 2:00 PM                                 | CV Reported At:<br>CCRB             | How CV Reported:<br>In-person | Date/Time Received at CCRB<br>Mon, 07/03/2023 2:00 PM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. PO Jonathan Warfield | 11222  | 962159 | 060 PCT |
| 2. PO Joseph Doyle      | 14277  | 956611 | 060 PCT |
| 3. PO Matthew James     | 27321  | 968512 | 060 PCT |
| 4. PO Christopher Stone | 23135  | 970243 | 060 PCT |

| Witness Officer(s)      | Shield No | Tax No | Cmd Name |
|-------------------------|-----------|--------|----------|
| 1. PO Kate Scotko       | 23841     | 973768 | 060 PCT  |
| 2. PO Jiantong Li       | 12604     | 967579 | 060 PCT  |
| 3. SGT SA John Christie | 02227     | 915452 | 060 PCT  |

| Officer(s)               | Allegation                                                                                                                       | Inv. Div. Recommendation |
|--------------------------|----------------------------------------------------------------------------------------------------------------------------------|--------------------------|
| A . PO Jonathan Warfield | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield improperly evicted § 87(2)(b)               | A . Substantiated        |
| B . PO Jonathan Warfield | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened to arrest § 87(2)(b)             | B . Substantiated        |
| C . PO Jonathan Warfield | Abuse: On June 23, 2023 at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened § 87(2)(b) with the use of force. | C . Substantiated        |
| D . PO Jonathan Warfield | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened to seize § 87(2)(b) property.    | D . Substantiated        |
| E . PO Jonathan Warfield | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened to arrest § 87(2)(b)             | E . Substantiated        |
| F . PO Jonathan Warfield | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield seized § 87(2)(b) property.                 | F . Substantiated        |
| G . PO Christopher Stone | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Christopher Stone threatened to arrest § 87(2)(b)             | G . Substantiated        |

| Officer(s)               | Allegation                                                                                                               | Inv. Div. Recommendation   |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------|----------------------------|
| H . PO Jonathan Warfield | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield sexually humiliated § 87(2)(b)      | H . Unfounded              |
| I . PO Jonathan Warfield | Abuse: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield searched at § 87(2)(b) in Brooklyn. | I . Within NYPD Guidelines |
| J . PO Joseph Doyle      | Abuse: On June 28, 2023, at § 87(2)(b) in Brooklyn, Police Officer Joseph Doyle improperly used his body-worn camera.    | J . Substantiated          |
| K . PO Matthew James     | Abuse: On June 28, 2023, at § 87(2)(b) in Brooklyn, Police Officer Matthew James improperly used his body-worn camera.   | K . Substantiated          |

### Case Summary

On July 3, 2023, § 87(2)(b) filed this complaint in person at the CCRB.

On June 23, 2023, at approximately 6:30 p.m., § 87(2)(b) called 911 regarding his roommate, § 87(2)(b). Police Officers Johnathan Warfield, Christopher Stone, Jiantong Li, and Kate Scotko, all of the 60<sup>th</sup> Precinct, arrived at § 87(2)(b) in Brooklyn. PO Warfield evicted § 87(2)(b) from the apartment (**Allegation A: Abuse of Authority, Substantiated**). PO Warfield threatened to arrest § 87(2)(b) and to physically remove him and his belongings from the apartment if he refused to leave (**Allegations B-D: Abuse of Authority, Substantiated**). PO Warfield threatened to arrest § 87(2)(b) if he refused to give him his keys to the apartment and ultimately seized § 87(2)(b) keys (**Allegations E-F: Abuse of Authority, Substantiated**). PO Stone threatened to arrest § 87(2)(b) if he returned to the apartment without a police escort (**Allegation G: Abuse of Authority, Substantiated**). PO Warfield allegedly made § 87(2)(b) urinate with the bathroom door open while PO Warfield remained in close proximity (**Allegation H: Abuse of Authority, Unfounded**). PO Warfield retrieved § 87(2)(b) coat from his bedroom (**Allegation I: Abuse of Authority, Within NYPD Guidelines**).

On June 28, 2023, at approximately 8:15 p.m., § 87(2)(b) called 911 and Police Officers James Doyle and Matthew James, of the 60<sup>th</sup> Precinct, arrived at § 87(2)(b) in Brooklyn. PO Doyle and PO James improperly used their body-worn cameras (“BWC”) (**Allegations J-K: Abuse of Authority, Substantiated**). No arrest or summons resulted from either incident.

This case was originally assigned to Supervising Investigator Rachel Adler and was reassigned to Investigator Ariana Thomas.

The investigation received six body-worn camera (“BWC”) videos from the NYPD Legal Bureau (**Board Review 01-06**) and cellphone video of events preceding the June 23, 2023, incident from § 87(2)(b) (**Board Review 07**).

### Findings and Recommendations

**Allegation (A) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield improperly evicted § 87(2)(b)**

**Allegation (B) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened to arrest § 87(2)(b)**

**Allegation (C) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened § 87(2)(b) with the use of force.**

**Allegation (D) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened to seize § 87(2)(b) property.**

§ 87(2)(b) testified that on June 23, 2023, he resided at § 87(2)(b) in Brooklyn, where he had been living since June 11, 2023 (**Board Review 08**). He lived in the apartment with his landlord, § 87(2)(b) and another roommate, § 87(2)(b). § 87(2)(b) signed a six-month lease with § 87(2)(b) for the apartment on June 9, 2023, and paid her \$2,000 in rent and security deposit. At approximately 7:30 p.m., on July 23, 2023, § 87(2)(b) was inside his bedroom when § 87(2)(b) kicked his door open and began yelling in her native language. § 87(2)(b) called 911 and told them that his roommate kicked in his door, was “going crazy,” “was having a mental breakdown,” and that he feared for his safety. § 87(2)(b) remained in his bedroom while awaiting the police. He then heard a knock on the door. When § 87(2)(b) exited his room, PO Warfield, PO Stone, PO Li, and PO Scotko, identified via the investigation, were inside the apartment. § 87(2)(b) immediately told the officers that he was the one who called and

what happened. PO Warfield quickly asked if § 87(2)(b) had been there for under 30 days. § 87(2)(b) said yes, but that he had a lease. The officers then gave § 87(2)(b) an opportunity to present her side of the story, using an interpreter on the phone. § 87(2)(b) alleged that § 87(2)(b) was violent toward her, which was untrue. § 87(2)(b) tried to interject, but PO Li did not allow him to speak and nudged § 87(2)(b) away from § 87(2)(b) room. PO Warfield told § 87(2)(b) he had to take his belongings and leave the apartment. § 87(2)(b) asked if he could show footage of § 87(2)(b) kicking his door, but PO Warfield told him to leave. § 87(2)(b) stated that he did not agree to that. PO Warfield then stated, “Get your stuff now or we’re going to take you out in handcuffs and take you to jail,” and, “If you come back, you’re going to be arrested.” § 87(2)(b) walked toward his room with the officers. PO Warfield and PO Stone followed § 87(2)(b) into the room. He asked PO Warfield on what grounds they were making him leave. PO Warfield stated that § 87(2)(b) was there for fewer than 30 days, and the roommate wanted him to leave. § 87(2)(b) told PO Warfield that he had a lease so the squatter situation did not apply and asked if he could show PO Warfield the lease. PO Warfield stated, “No, too bad. That’s the law, so start packing.” Multiple times throughout the incident, PO Warfield mentioned that § 87(2)(b) could be arrested for not complying with them and getting out of the apartment.

In PO Warfield’s BWC video (**Board Review 01**), at 03:40, PO Warfield knocks on the apartment door. § 87(2)(b) opens the door. From the back of the apartment, § 87(2)(b) who is not visible, says he called. § 87(2)(b) opens the door completely and walks inside the apartment. The officers follow. At 03:46, § 87(2)(b) asks to speak to the officers separate from § 87(2)(b) who is hyperventilating. At 04:11, § 87(2)(b) lays down on her bed, says, “I sleep... Come kick,” and slaps her own leg. PO Warfield asks, “Who?” and § 87(2)(b) points to her right. § 87(2)(b) says she speaks Russian. At 04:36, PO Warfield exits § 87(2)(b) room and walks towards § 87(2)(b) who says he moved in three days ago and that there has been issues between him and § 87(2)(b) after he moved in. At 05:07, § 87(2)(b) says that earlier that day § 87(2)(b) kicked his door in. At 5:55, § 87(2)(b) says that she is the primary leaseholder and that he is subleasing. At 06:05, § 87(2)(b) says he signed a contract and PO Warfield says, “Doesn’t matter,” and explains that under New York State law, if he has been there for less than 30 days and § 87(2)(b) wishes for him to leave, the officers can kick him out. From 07:09 to 14:00, PO Warfield tries to obtain an interpreter who speaks the dialect of Russian § 87(2)(b) speaks. At 14:26, the interpreter tells PO Warfield that § 87(2)(b) said that an American person was being violent towards her by grabbing her by the foot and that this person leaves food that smells bad out. At 17:47, the interpreter confirms that the apartment is § 87(2)(b). At 22:00, the interpreter confirms that § 87(2)(b) wants § 87(2)(b) out of the apartment. At 22:13, PO Warfield tells § 87(2)(b) “In the state of New York, if you don’t occupy a residency for more than 30 days, you can be legally thrown out by the police. She said that she wants you out... you have til tonight to get out before I come back here tomorrow or tonight if she calls and you’re still here, I will physically remove you from this property and your property and that is legally okay.” At 22:40, § 87(2)(b) asks why he is doing this. PO Warfield says that contract or not he is allowed to “throw [him] out,” since he has resided there for fewer than 30 days. At 30:20, PO Warfield says, “Alright § 87(2)(b) so what do you want to do? Cause you’re leaving right now. Whether it’s in handcuffs and you don’t want to go willingly or you want to go on your own and take what you need right now.” § 87(2)(b) says he guesses that he has no choice. PO Warfield says, “You have a choice. It’s either you do it willingly or I bring you in handcuffs to the precinct and you’re under arrest and then it’ll all be settled in court.” At 31:00, § 87(2)(b) says he does not know whether he wants to let PO Warfield in his room. PO Warfield says, “You have no choice. I now go anywhere you do.” At 31:42, PO Warfield tells § 87(2)(b) “If you keep delaying, I’m gonna put you in handcuffs and let you put shoes on and just bring you to the precinct.” § 87(2)(b) begins packing his

belongings.

The investigation obtained four 911 calls regarding this incident (**Board Review 09-12**). Regarding the first call, § 87(2)(b) states that § 87(2)(b) is having a mental breakdown and must have a mental illness. He says § 87(2)(b) is kicking his door in and that he never touched her (**Board Review 09**). § 87(2)(b) is transferred to an EMS operator and reiterates this information. Regarding the second call, § 87(2)(b) reports that she is having a roommate problem (**Board Review 10**). Regarding the third call, § 87(2)(b) asks if police are coming and reiterates that she is having a roommate problem (**Board Review 11**). Regarding the fourth call, § 87(2)(b) requests assistance with her roommate problem as she cries (**Board Review 12**).

PO Warfield testified that he and PO Stone received a call regarding a woman who was at an apartment and acting erratic (**Board Review 13**). After arriving, the officers got an interpreter on the line, who relayed that § 87(2)(b) was causing an issue in § 87(2)(b) apartment, lives a messy lifestyle, and that § 87(2)(b) wanted him out. § 87(2)(b) told the officers that he had only been living in the apartment for three days, was renting from § 87(2)(b) and that she had issues with him. PO Warfield did not take any steps to locate any contract or lease because he did not have to since under New York State law, it would not have mattered as § 87(2)(b) had been living at the apartment for fewer than 30 days. Regardless of a contract or lease, under 30 days, an occupant of an apartment can be lawfully removed. Any issues with a contract are sorted out in landlord-tenant court. PO Warfield stated that NYPD officers have the authority to remove civilians from their apartment if they have lived at a residence for fewer than 30 days regardless of whether they have a contract. After 30 days, the person who wants their roommate removed from the apartment would have to go to landlord-tenant court to get an eviction notice and then go to the Sheriff's Department to have them legally evicted. In any situation, a contract is only relevant in the landlord-tenant court, not to the officers. PO Warfield learned this in the Police Academy and from his years of experience as a police officer. PO Warfield has had to deal with a situation like this over 10 times. PO Warfield made the decision to remove § 87(2)(b) from the apartment.

§ 87(2)(b) objected to leaving the apartment, and PO Warfield told him he had no choice and that if he did not comply, he would be arrested. If he did not comply, § 87(2)(b) could have been arrested for trespassing, as he would be in an apartment unlawfully and refusing to leave. § 87(2)(b) delayed the process by not moving, stating that he strongly disagreed with what PO Warfield was doing, and remaining in the hallway. PO Warfield told § 87(2)(b) "I will physically remove you from this property and your property," if § 87(2)(b) did not comply because § 87(2)(b) would have been trespassing if he did not comply with PO Warfield's order to pack up his belongings and leave. The officers could have removed § 87(2)(b) and his property by arresting him. The property would be given to § 87(2)(b) the police department would not seize it. PO Warfield told § 87(2)(b) that he was either going now or he was going out in handcuffs for the same reasons as above; had he stayed in the apartment, he would have been trespassing. § 87(2)(b) eventually complied and went to his bedroom to pack his belongings. PO Warfield did not consider § 87(2)(b) trespassing when he was complying with the officers' commands and packing up his belongings. As soon as § 87(2)(b) stopped complying, he would have been trespassing. PO Warfield explained that when § 87(2)(b) later asked to double check his room and PO Warfield told him, "Don't make me take you by the wrist and take you outside," because he would have been trespassing and the officers could have removed him from the property.

According to the NYPD Legal Bureau Bulletin: Volume 49 Number 3, regarding unlawful evictions (**Board Review 14**), a person is protected under the Unlawful Evictions statute if they have lawfully occupied a dwelling pursuant to a lease. Even if a person has occupied a dwelling

unit for fewer than thirty days, he is protected if he has commenced his occupancy and has a lease for the dwelling unit.

It shall be unlawful for any person to evict or attempt to evict an occupant of a dwelling who has lawfully occupied the dwelling for thirty consecutive days or longer or who has entered into a lease with respect to such dwelling. NYPD Patrol Guide, Procedure 214-12 (**Board Review 15**) and NYC Administrative Code §26-521 (**Board Review 16**).

A person is guilty of trespass (a violation) when they knowingly enter or remain unlawfully in or upon premises (**Board Review 17**).

It is undisputed that § 87(2)(b) told PO Warfield that he had a lease agreement for the room inside the apartment. § 87(2)(g)

§ 87(2)(b) PO Warfield failed to inquire into the lease agreement, and evicted § 87(2)(b) from the apartment solely on the grounds that he occupied the residence for fewer than 30 days, § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A through D** be closed as **Substantiated**.

**Allegation (E) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield threatened to arrest § 87(2)(b)**

**Allegation (F) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield seized § 87(2)(b) property.**

**Allegation (G) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Christopher Stone threatened to arrest § 87(2)(b)**

**Allegation (H) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield sexually humiliated § 87(2)(b)**

**Allegation (I) Abuse of Authority: On June 23, 2023, at § 87(2)(b) in Brooklyn, Police Officer Jonathan Warfield searched at § 87(2)(b) in Brooklyn.**

§ 87(2)(b) testified that he told the officers that he had to use the bathroom. PO Warfield stated, “You’ve got to piss with the door open.” PO Warfield and PO Stone then stood outside the open bathroom door, two feet away from § 87(2)(b) as he urinated; § 87(2)(b) felt as if he was being treated like a prisoner. § 87(2)(b) and the officers went back into § 87(2)(b) bedroom. § 87(2)(b) who was wearing shorts and a T-shirt at the time, asked PO Warfield and PO Stone if he could change since he was going to be out on the streets. PO Warfield said, “Go ahead.” § 87(2)(b) then stripped down to his underwear to change. He did not want the officers to be there while he changed but felt he was not given the choice. PO Warfield ordered § 87(2)(b) to provide his keys. PO Warfield then took § 87(2)(b) apartment keys, but left him with the key to his room, which they locked on the way out. Before they locked his room, § 87(2)(b) asked if he could check his room to make sure he did not leave anything important, but the officers did not allow him to do so. PO Stone picked up § 87(2)(b) bag and said, “Let’s go.” The officers then ushered § 87(2)(b) out of the apartment and out of the building.

In PO Warfield’s BWC video (**Board Review 01**), at 57:30, § 87(2)(b) asks PO Warfield and

PO Stone, who stand at his bedroom doorway, “Do you guys mind if I change my pants?” PO Warfield says, “Yes, we’re not leaving the room though. It is what it is.” § 87(2)(b) changes his pants in front of the officers. At 59:20, PO Warfield asks where the keys to the apartment are. PO Stone says, “You just put it in your pocket. I saw you.” § 87(2)(b) says, “I paid for those keys.” PO Warfield says, “It doesn’t matter. You’re giving me those keys or you’re getting arrested.” PO Warfield says that he did not pay for the keys and that the keys belong to § 87(2)(b) § 87(2)(b) says the keys belong to him and he paid for them. At 01:00:01, PO Warfield tells § 87(2)(b) that he cannot come back without a police escort, so the keys do not matter. At 01:00:08, PO Stone says, “and if you come back without it, you’re gonna get arrested anyway so.” At 01:00:54, § 87(2)(b) says he needs to use the bathroom. PO Warfield says, “You’re not closing the door.” § 87(2)(b) says he is treating him like a criminal and enters the bathroom. PO Warfield says, “You can close the door somewhat...Just not fully,” and closes the door slightly, such that § 87(2)(b) whole body is in front of the door and still visible. § 87(2)(b) does not move. PO Warfield orders § 87(2)(b) to give him the keys. § 87(2)(b) takes out his key and says one is his because he installed the door. PO Warfield says it does not matter and orders § 87(2)(b) to give him the keys. He complies and PO Warfield gives the keys to § 87(2)(b) and then returns the key to § 87(2)(b) door to him. At 01:03:20, § 87(2)(b) urinates with the bathroom door open. At 01:03:45, § 87(2)(b) exits the bathroom. At 01:04:45, PO Warfield enters the bedroom further and orders § 87(2)(b) to leave immediately. After a few minutes of § 87(2)(b) grabbing various items from his room, § 87(2)(b) and the officers exit at 1:06:44. At 1:07:28, § 87(2)(b) asks for a jacket. PO Warfield orders him to leave the apartment and says he will get a jacket for him. § 87(2)(b) says it is a blue and yellow coat. At 01:07:40, the officers and § 87(2)(b) exit the apartment. At 1:08:12, PO Warfield unlocks § 87(2)(b) door with his key and retrieves § 87(2)(b) jacket.

PO Warfield testified that in response to § 87(2)(b) request to use the bathroom, PO Warfield told him that he could not close the door fully because PO Warfield was not going to allow § 87(2)(b) to lock himself in the bathroom for the same reason as the bedroom. § 87(2)(b) was not considered in police custody. PO Warfield was just trying to prevent § 87(2)(b) from barricading himself. The bathroom door was open while the officers stood outside. The officers gave him the opportunity to close it somewhat, but § 87(2)(b) chose not to. Besides not wanting § 87(2)(b) to barricade himself inside the bathroom, PO Warfield did not have any other intentions. It was not PO Warfield’s intent to sexually humiliate § 87(2)(b) PO Warfield needed to maintain a visual on § 87(2)(b) when he was inside the bedroom and bathroom because at that point § 87(2)(b) could have been upset and the officers were not going to allow him to pick up a weapon and hurt them. PO Warfield did not have any reason to believe that § 87(2)(b) was violent or dangerous.

PO Warfield asked § 87(2)(b) for his keys because the officers did not want § 87(2)(b) to enter the apartment again due to a fear for safety for § 87(2)(b) because when the officers first arrived, § 87(2)(b) was physically grabbing herself as if someone was grabbing her, displaying signs of being fearful of someone touching her. PO Warfield informed § 87(2)(b) that they would provide him with a police escort to return to retrieve the rest of his belongings. PO Warfield later returned the key to § 87(2)(b) bedroom, stating that he could have that key so that § 87(2)(b) would not go into his room. PO Warfield returned § 87(2)(b) key to the apartment to § 87(2)(b) § 87(2)(b) said that the keys were his and PO Warfield told him that they were § 87(2)(b) PO Warfield knew that the keys were § 87(2)(b) because she owned the apartment. He did not take any steps to verify that the keys were § 87(2)(b) PO Warfield said, “You’re giving me those keys or you’re getting arrested,” to § 87(2)(b) because he could have been arrested for OGA by refusing PO Warfield’s lawful command. § 87(2)(b) requested his jacket, which he said was behind the door in the bedroom. PO Warfield went into his room and grabbed the blue jacket from behind the door and closed and locked the door. He did not move or touch anything else inside





Under the Fourth Amendment of the U.S. Constitution and Article I, §12 of the New York Constitution, officers may not search areas over which civilians maintain a reasonable expectation of privacy unless the civilians provide consent, or the officers prove exigent or emergency circumstances necessitated their search. People v. Scott, 133 A.D.3d 794 (**Board Review 21**).

Consent to search is voluntary when it is a true act of will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, over or subtle. People v. Gonzalez, 39 N.Y.2d 122 (**Board Review 22**).

The BWC video captures § 87(2)(b) telling the officers he left his jacket in his bedroom after they locked the door and PO Warfield telling him he will retrieve it for § 87(2)(b). The BWC video confirms that § 87(2)(b) does not verbally object to this and tells PO Warfield which jacket he wants him to retrieve. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation I** be closed as **Within NYPD Guidelines**.

**Allegation (J) Abuse of Authority: On June 28, 2023, Police Officer Joseph Doyle improperly used his body-worn camera.**

**Allegation (K) Abuse of Authority: On June 28, 2023, Police Officer Matthew James improperly used his body-worn camera.**

§ 87(2)(b) testified that on June 28, 2023, § 87(2)(b) called § 87(2)(b) and stated that she would like to meet in person at the apartment to try to reach an agreement in which she would give him back his money if he moved his belongings out of the apartment. At approximately 7:15 p.m., § 87(2)(b) went to the apartment with an acquaintance who served the papers for housing court. Immediately after serving the papers, the friend left. § 87(2)(b) then gathered some belongings from his room. § 87(2)(b) told § 87(2)(b) that he could not just move out of the apartment immediately because he had to bag up his belongings and find a new place. Additionally, he told her he was unable to pay a security deposit at a new place without the security deposit money that he gave her. While they were still discussing the situation, approximately an hour after § 87(2)(b) arrived at the apartment, there was a knock on the door. § 87(2)(b) opened the door. PO Doyle and PO James, identified via the investigation, came inside to the open space; § 87(2)(b) believed either § 87(2)(b) or § 87(2)(b) allowed them to enter. § 87(2)(b) asked why the officers were there and the officers stated that there was a 911 call. § 87(2)(b) saw that the red light on the officers' BWCs were not flashing. He asked them to turn their BWCs on and they did so. An officer told § 87(2)(b) he could not stay there because he had been there under 30 days and suggested that he come to an agreement with § 87(2)(b). The officers and § 87(2)(b) left together after approximately 30 minutes.

PO Doyle testified that he and PO James received a 911 call for a 10-10, possible crime (**Board Review 24**). Once inside the apartment, the officers asked what was going on. After being inside the apartment for 15 to 20 seconds, § 87(2)(b) asked the officers to activate their BWCs. At the time, a 10-10 job did not require mandatory activation, so the officers did not activate their BWCs right away. At the time, priority calls like robberies, crimes in progress, like assaults and weapons jobs, required mandatory activation. A few months after this incident, the NYPD made "pretty much everything," officers respond to a mandatory activation. Besides the fact that it was not mandatory to activate for 10-10 jobs, there was no other reason that PO Doyle did not activate his BWC as soon as he began interacting with the civilians.

PO James' testimony was consistent with PO Doyle's (**Board Review 25**). He did not activate his

BWC because it was not required for this type of job at the time of the incident.

The EVENTS confirm that the job came over as a 10H1, investigate/possible crime: calls for help/inside (**Board Review 31**)

Officers are required to activate their BWC prior to engaging in any police action. Officers are to activate their BWC as soon as it is feasible and safe to do so after taking necessary action to preserve human health and safety, when an unanticipated or exigent occurrence takes place. NYPD Patrol Guide, Procedure 212-123, effective May 4, 2023 (**Board Review 26**).

§ 87(2)(g)

It is therefore recommended that **Allegations J and K** be closed as **Substantiated**.

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 29**).
- PO Warfield has been a member of service for seven years and has been a subject in three CCRB complaints and seven allegations, two of which were substantiated.
  - Case # 202104414 involved a substantiated allegation of a failure to provide RTKA card. The Board recommended Command Discipline A, which the NYPD imposed.
  - Case #201903998 involved a substantiated allegation of a discourteous word. The Board recommended Command Discipline A, which the NYPD imposed. § 87(2)(g)
- PO Stone has been a member of service for three years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Doyle has been a member of service for nine years and has been a subject in two CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO James has been a member of service for four years and this is the first complaint to which he has been a subject.

#### **Mediation, Civil, and Criminal Histories**

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming that he was forced homeless for two weeks and sustained trauma, anxiety, and emotional distress and seeking \$100,000 as redress (**Board Review 28**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

#### **RPBP History**

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 16

|               |                      |                           |                   |
|---------------|----------------------|---------------------------|-------------------|
| Investigator: | <u>Ariana Thomas</u> | <u>Inv. Ariana Thomas</u> | <u>03/27/2024</u> |
|               | Signature            | Print Title & Name        | Date              |

|               |                   |                      |                   |
|---------------|-------------------|----------------------|-------------------|
| Squad Leader: | <u>Patrick Yu</u> | <u>IM Patrick Yu</u> | <u>04/01/2024</u> |
|               | Signature         | Print Title & Name   | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |